

imposition of the sanction unjust.”

Nor is the sanction request affected by the fact that an Amended response was served. Rule of Court 3.1348(a) specifically addresses this situation, providing: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Failure to oppose or filing of a supplemental response “shall not be deemed an admission that the motion was proper or that sanctions should be awarded.” (CRC 3.1348(b).)

The motion against Peterson-Cat is denied as to numbers 26, 32, 33, 37, 39, and 40. It is granted as to number 41. Peterson-Cat shall provide further responses to number 41, without objection, by March 2, 2026.

Plaintiff only partly prevailed on this motion. It prevailed as to 39, 40, and 41. (The motion is denied as to 39 and 40 only because of the supplemental responses, which were engendered by the filing of the motion.) Peterson-Cat’s objections are not substantially justified as to those matters on which plaintiff prevailed. Sanctions in the amount of \$800 (based on \$400 per hour) are awarded against Peterson-Cat, to be paid no later than March 2, 2026.

19. 9:00 AM CASE NUMBER: MSC21-00637

CASE NAME: OSCAR CORONA VS. JOSHUA WARD

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:**

TENTATIVE RULING:

Based on the settlement administrator’s representation that the funds will not be distributed until February 6, 2026, the compliance hearing is continued to May 27, 2026, at 9:00 a.m., in Department 16. As of March 1, 2026, this matter is assigned for all purposes to Department 16, the Honorable Benjamin Reyes. A case management conference in this matter is set in Department 16 for April 24, 2026, 8:30 a.m.

20. 9:00 AM CASE NUMBER: MSC21-02036

CASE NAME: PEOPLE OF CA VS. CORTEVA INC

***HEARING ON MOTION IN RE: COMPEL DEFENDANTS RESPONSES AND PRODUCE DOCUMENTS
FILED BY: PEOPLE OF THE STATE OF CALIFORNIA EX REL. MEREDITH WILLIAMS, DIRECTOR OF THE
CALIFORNIA DEPARTMENT OF TOXIC SUBSTANCES**

TENTATIVE RULING:

On January 20, the parties were directed to meet and confer in a further attempt to resolve the issues, given the guidance issued by the Court in its order. The parties have not resolved Special Interrogatories 1 and 33, and Requests for Production of Documents 9, 10, and 50. They report that they have “not yet reached an agreement” on those requests, but they are continuing to meet and confer and will report to the Court at the hearing. Accordingly, the Court will not issue a tentative ruling on those requests. **Hearing required.**

Law & Motion
Add On

21. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. DOES 1 THROUGH 50, INCLUSIVE
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:

TENTATIVE RULING:

The motion is **granted**.

Plaintiff Iliana Reyes moves for preliminary approval of her class action and PAGA settlement with defendants Firstamerica Automotive, Inc., Firstamerica Automotive, LLC, Sonic Automotive Inc., Beverly Hills BMW, and Echo Park Automotive.

A. Background and Settlement Terms

The original complaint was filed by Ms. Reyes on November 6, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff filed a First Amended Complaint on January 10, 2024 adding PAGA claims. The operative pleading is the First Amended Complaint.

The settlement would create a gross settlement fund of \$1,800,000. The class representative payment to plaintiff would be up to \$10,000. Attorney's fees would be \$600,000 (one-third of the settlement). Litigation costs would not exceed \$25,000. The settlement administrator's costs would not exceed \$30,000. PAGA penalties would be \$200,000, resulting in a payment of \$150,000 to the LWDA and \$50,000 to plaintiffs. The net amount paid directly to the class members would be about \$935,000. The fund is non-reversionary. Based on the estimated class size of 4,571, the average net payment for each class member is approximately \$204.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.